

Care Plan (Judicial Council form GC-355/356). The Clerk is directed to send notice to the parties.

The Conservators are urged to consult with the Court's Self-Help Center for assistance.

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Conservatorship of Octavio Hernandez Espinoza

22PR000222

REVIEW HEARING

APPEARANCE REQUIRED

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In The Matter of Betty J. Dondero Trust Dated December 20, 1999

25PR000252

FIRST AMENDED PETITION FOR: (1) ACCOUNTING; (2) BREACH OF TRUST; (3) WRONGFUL TAKING OR WITHHOLDING OF TRUST PROPERTY; (4) CONVERSION; (5) FRAUD; (6) UNJUST ENRICHMENT; AND (7) CONSTRUCTIVE TRUST

APPEARANCE REQUIRED. The parties are directed to appear to inform the Court of the status of the Case and, if appropriate, set the matter for hearing.

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Conservatorship of Richard Douglas Royer

26-66054

SECOND AND FINAL ACCOUNTING AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE, FOR ATTORNEY FEES, AND FOR TERMINATION OF CONSERVATORSHIP

TENTATIVE RULING: The Petition is GRANTED. The Court has been informed that the Conservatee is deceased. The Conservatorship is therefore terminated and all future hearings VACATED.

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Estate of The Special Needs Trust of Richard Douglas Royer

22PR000177

FIRST AND FINAL ACCOUNTING AND REPORT OF TRUSTEE; PETITION FOR ALLOWANCE OF FEES TO TRUSTEE, ALLOWANCE OF COMPENSATION TO TRUSTEE'S ATTORNEY AND FOR TERMINATION OF SPECIAL NEEDS TRUST

TENTATIVE RULING: The Petition is GRANTED. The Court has been informed that the Conservatee is deceased. The Conservatorship is therefore terminated.

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON AND ESTATE

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Bryan Vu v. Edward Erik Eriksson

26CV001045

SPECIAL MOTION TO STRIKE

TENTATIVE RULING: The motion is GRANTED IN PART. The second, third, fourth, and fifth causes of action are stricken from the Complaint pursuant to Code of Civil Procedure section 425.16 (Section 425.16). Paragraphs 14, 15, 16, and 18 of the Complaint are stricken pursuant to Code of Civil Procedure section 436, subdivision (a).

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Edward Erik Eriksson III moves, pursuant to Code of Civil Procedure section 425.16 (Section 425.16), for an order striking: “The Second Cause of Action (Wrongful Attachment), the Third Cause of Action (Wrongful Denial of Civil Due Process), the Fourth Cause of Action (Intentional Infliction of Emotional Distress), and the Fifth Cause of Action (Negligent Infliction of Emotional Distress), each in its entirety; and [t]he protected-activity allegations within the First Cause of Action (Conversion) and the Sixth Cause of Action (Financial Abuse of a Dependent Adult), specifically paragraphs 14 through 16 and 18 through 19 of the Complaint wherever incorporated into those causes of action The Second, Third, Fourth, and Fifth Causes of action in their entirety.” (Notice of Motion at 2:2-9.)

A. LEGAL BACKGROUND

“The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from ‘any act [by the defendant] in furtherance of the person’s right of petition or free speech under the United States or California Constitution,’ and